

Court No. - 29

Case :- WRIT - C No. - 37931 of 2024

Petitioner :- Phool Singh

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd And Another

Counsel for Petitioner :- Arun Mishra, Vijay Pratap Singh

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard Shri Arun Mishra, learned counsel for the petitioner and Shri R.K. Mishra holding brief of Shri N.K. Tiwari, learned counsel appearing for the respondent-Electricity Board.

2. Present petition has been filed with following prayer:-

"Issue a writ of Certiorari quashing notice dated 29.05.2024 issued by the respondent no.2 after lapse of more than two years of time against petitioner as the same is barred by time U/s 126(3) of the Electricity Act, 2003 R/w U/c clause 6.8 a (vi), b(i) & c(i) of the U.P. Electricity Supply Code, 2005."

3. Learned counsel appearing for Electricity Board has produced before this Court copy of the instructions annexing therewith final assessment order dated 22.10.2024 passed by the Assessing Authority, copy whereof has been communicated to the petitioner on 23.10.2024 through registered post. Copy of the instructions so supplied by the learned counsel for the respondent is taken on record. Learned counsel for the respondent submitted that against the final assessment order the petitioner has effective, alternative, statutory remedy by way of filing an appeal.

4. Submission of the learned counsel for the petitioner is that there has been a considerable delay of more than two years of passing the final assessment order and the same is barred by time under Section 126(3) of Electricity Act, 2003 read with Clause 6.8(c)(i) of the U.P. Electricity Supply Code, 2005.

5. It is further contended that since the offence alleged is theft of electricity as defined under Section 135 of the Electricity Act, 2003, the matter can be looked into only by the Special Court constituted under Section 153 of the Electricity Act, 2003 wherein the Special Court has been granted powers to determine the civil liability against a consumer or person and in such view of the matter, the provisional assessment issued by the Executive Engineer of the respondent-corporation is without jurisdiction and is liable to be quashed.

6. The ground Special Court having jurisdiction in a case of theft has been considered by this Court in Writ-C No. 26778 of 2023 (Aaysha Begum vs. Purvanchal Vidhut Vitrana Nigam Ltd. and Another) which was dismissed vide judgment and order dated 10.08.2023.

7. We find that against final assessment order the petitioner has effective,

alternative statutory remedy, therefore, we are not inclined to entertain the present writ petition and the same is accordingly dismissed with liberty to the petitioner to avail the remedy as may be available to him in accordance with law, if so advised.

Order Date :- 19.11.2024

Nitendra